

Chief Justice's Court

Case :- WRIT - C No. - 24628 of 2023

Petitioner :- Krishi Utpadan Mandi Samiti And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ved Byas Mishra

Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Pritinker Diwaker,Chief Justice

Hon'ble Ashutosh Srivastava,J.

At the request of Sri Akhilesh Kumar Singh under the authority of Sri Ved Byas Mishra, learned counsel for the petitioners, list this case after two weeks as fresh.

Order Date :- 21.8.2023

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(Ashutosh Srivastava,J.) (Pritinker Diwaker,CJ.)

Court No. - 3

Case :- WRIT - C No. - 24628 of 2023

Petitioner :- Krishi Utpadan Mandi Samiti And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ved Byas Mishra

Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Upon a call given by High Court Bar Association, Allahabad,
lawyers are abstaining from work.

Learned Standing Counsel is present.

Put up this case as fresh on 26.9.2023.

Order Date :- 13.9.2023

P.S.Parihar

Court No. - 3

Case :- WRIT - C No. - 24628 of 2023

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ved Byas Mishra

Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Put up this case on 17.10.2023 as fresh.

Order Date :- 13.10.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 24628 of 2023

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Respondent :- State Of U.P. And 4 Others

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Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Put up this case on 27.10.2023 as fresh.

Order Date :- 17.10.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 24628 of 2023

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Respondent :- State Of U.P. And 4 Others

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Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Petitioners had applied for a permanent disconnection on 19.4.2018, when it was not being done, they repeated their demand on 14.6.2018. Ultimately, on 18.6.2018 the Electricity Department stated that petitioners had to pay Rs.10,000/- as compounding charges, permanent disconnection fee of Rs.1,000/- and arrears of Rs.19,59,909/-. It has been alleged in the writ petition that after the payment of Rs.19,59,909/- no disconnection was done. It has also not been disputed that when the disconnection was not done, the petitioners did not move the High Court or any authority. However, when on 22.3.2022 a recovery certificate was issued, they approached the writ court by means of Writ-C No.17752 of 2022. That writ petition was disposed of on 30.6.2022 with a direction that the petitioners may approach the Executive Engineer, who would take a decision under Clause 6.5 U.P. Electricity Supply Code, 2005. Consequently, the petitioners had approached the Executive Engineer and when thereafter on 6.8.2022 an order was passed that the petitioners had to pay Rs.44,02,436/- the instant writ petition has been filed. The Court finds that in the order dated 6.8.2022 itself it was stated that when the bill was corrected earlier on 24.10.2018, it was found that the

petitioners had to pay Rs.1,13,59,073/- and out of that amount, the petitioners thereafter had also paid Rs.69,56,667/- on 30.11.2018.

Learned counsel for petitioners here in this writ petition argued that when the permanent disconnection had taken place on 18.6.2018 then the further bills ought not to have been generated.

Learned counsel for the Electricity Department however has stated that when 24.10.2018 a bill of Rs.1,13,59,073/- was generated saying that earlier bills were sent erroneously, the petitioners had acceded to the demand and had also paid Rs.69,56,667/-. He therefore, submits that it does not now lie in the mouth of the petitioners to say that the disconnection ought to have been done as per the communication dated 18.6.2018.

Having heard the learned counsel for petitioners and Sri Vinod Kumar Singh, Advocate holding brief of Sri Manu Ghildyal, learned counsel for Electricity Department, we do find that when the bill of Rs.1,13,59,073/- was sent to the petitioner on 24.10.2018 saying that earlier bills were sent to the petitioners erroneously and that therefore an amount of Rs.1,13,59,073/- was payable then the petitioners had acceded to that demand and had also paid Rs.69,56,667/-.

Under such circumstances, no interference is warranted by this Court. The recovery as is now been made cannot be interfered with.

The writ petition is accordingly, dismissed.

Order Date :- 2.11.2023

P.S.Parihar